

SUPERIOR COURT OF CALIFORNIA  
COUNTY OF VENTURA

**Tentative Ruling**

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**2026CUBC062725: MAJED BITTAR vs MERCEDES-BENZ USA, LLC, A DELAWARE  
LIMITED LIABILITY COMPANY, et al.**

**06/22/2026 in Department 44**

**Motion to Compel BINDING ARBITRATION AND MOTION TO STAY ACTION**

Effective **January 5, 2026**, Judge Charmaine H. Buehner and all cases previously assigned to Department J4 at the Juvenile Justice Center in Oxnard transferred to Department 44, located at the Hall of Justice, 800 South Victoria Avenue, Ventura, California 93009.

**Department Rules.** Parties and counsel shall follow the Department 44 rules and Zoom protocols, available at <https://www2.ventura.courts.ca.gov/Courtroom/C44>.

**Remote Appearances.** The Court allows Zoom appearances as a courtesy to parties and counsel. The Court does not accommodate Court Call appearances. **You MUST register by 4:00 p.m. the court day before your hearing or you will be DENIED entry to the hearing:**

**ZOOM Registration Link:**

<https://ventura-courts-ca.zoom.us/meeting/register/iqN7uhQSQMuoQs-9TQXgEQ>

No advance notice is required to appear in person.

**Tentative Rulings.** Oral argument should address the tentative decision. To submit on the tentative decision, email [courtroom44@ventura.courts.ca.gov](mailto:courtroom44@ventura.courts.ca.gov) before 8:00 a.m. on the hearing date, copying all other parties, Use the subject line “SUBMISSION ON TENTATIVE”, [Case Number], [Case Title] and [Party]. If not all parties submit, the hearing will proceed, and the tentative ruling may change.

The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

**Motion:** Defendant Grieco Motors West LLC d/b/a Mercedes-Benz of Oxnard’s Motion to Compel Binding Arbitration and Motion to Stay Action

**I. Tentative Ruling:**

Defendant Grieco Motors West LLC d/b/a Mercedes-Benz of Oxnard’s (“Dealer”) Motion to Compel Binding Arbitration and Motion to Stay Action is GRANTED and the matter is STAYED as to the moving defendant.

The Court sets a status conference re: arbitration between dealer and plaintiff for **June 18, 2027 at 8:30 a.m.** Dealer and Plaintiff shall file a joint status report 10 days in advance of the status conference.

## **II. Relevant Background**

This lemon law action arises out of the purchase of an alleged defective certified pre-owned 2024 Mercedes Benz C300 on October 14, 2024, from defendant Mercedes-Benz of Oxnard. The Complaint was filed on March 11, 2026, and alleges claims under the Song-Beverly Act for breach of express warranty, breach of implied warranty, and violation of Civil Code section 1793.2, subdivision (b), against defendant Mercedes-Benz USA, LLC, and a violation of Civil Code section 1796.5 against defendant Mercedes-Benz of Oxnard, which moves here to compel Plaintiff to arbitrate that claim against it.

This motion was filed on April 24, 2026. Plaintiff's opposition was filed on June 8, 2026. Defendant's reply memorandum was filed on June 12, 2026, though it was erroneously titled, stating that it was defendant Mercedes-Benz USA, LLC's reply memorandum. Defendant filed a notice of errata on June 15, 2026, to correct this clerical error.

No trial date has been set.

## **III. Discussion**

### **A. Legal Framework: Motions to Compel Arbitration**

"A written agreement to submit to arbitration an existing controversy or a controversy thereafter arising is valid, enforceable and irrevocable, save upon such grounds as exist for the revocation of any contract." (Code Civ. Proc., § 1281.)

California has a strong public policy in favor of arbitration. (*Moncharsh v. Heily & Blasé* (1992) 3 Cal.4th 1, 9.) Likewise, Section 2 of the Federal Arbitration Act (FAA) provides in relevant part: "A written provision in...a contract evidencing a transaction involving commerce to settle by arbitration a controversy thereafter arising out of such contract or transaction...shall be valid, irrevocable, and enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract." (9 U.S.C. § 2.) "In determining the rights of parties to enforce an arbitration agreement within the FAA's scope, courts apply state contract law while giving due regard to the federal policy favoring arbitration." (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development* (US), LLC (2012) 55 Cal.4th 223, 236.)

On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and where a party thereto refuses to arbitrate such controversy, the court shall order the petitioner and the respondent to arbitrate if it determines an agreement to arbitrate the controversy exists. (Code Civ. Proc., § 1281.2; *Gorlach v. Sports Club Co.* (2012) 209 Cal.App.4th 1497, 1505 [noting that "when presented with a petition to compel arbitration, the trial court's first task is to determine whether the parties have in fact agreed to arbitrate the dispute"].) In deciding a petition to compel arbitration, trial courts must first decide whether an enforceable arbitration agreement exists between the parties, and then determine the second gateway issue of whether the claims are covered within the scope of the agreement. (*Omar v. Ralphs Grocer Co.* (2004) 118 Cal.App.4th 955, 961.)

The initial burden is on the party petitioning to compel arbitration to prove the existence of the agreement by a preponderance of that evidence. (*Villacreses v. Molinari* (2005) 132 Cal.App.4th 1223, 1230.) Once petitioners allege that an arbitration agreement exists, the burden shifts to respondents to prove the falsity of the purported agreement, and no evidence or authentication is

required to find the arbitration agreement exists. (*Condee v. Longwood Mgt. Corp.* (2001) 88 Cal.App.4th 215, 219.) A written provision in a contract to submit to arbitration for a dispute contemplated by the contract is valid, irrevocable and enforceable except on “such grounds as exist at law or in equity for the revocation of any contract.” (9 United States Code, § 2 [contracts subject to the Federal Arbitration Act (FAA)]; Code Civ. Proc., § 1281 [contracts governed by state arbitration law].) Thus, the existence of a valid agreement to arbitrate is determined by reference to state law principles regarding the formation, revocation and enforceability of contracts generally. (See *Cronus Investments, Inc. v. Concierge Services* (2005) 35 Cal.4th 376, 385; see also *Kinney v. United Health Care Services, Inc.* (1999) 70 Cal.App.4th 1322, 1327-28.)

Code of Civil Procedure section 1281.4 provides, in relevant part: “If a court of competent jurisdiction, whether in this State or not, has ordered arbitration of a controversy which is an issue involved in an action or proceeding pending before a court of this State, the court in which such action or proceeding is pending shall, upon motion of a party to such action or proceeding, stay the action or proceeding until an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies.” (Code Civ. Proc., § 1281.4.) “The purpose of the statutory stay [under section 1281.4] is to protect the jurisdiction of the arbitrator by preserving the status quo until arbitration is resolved. [Citations.] [¶] In the absence of a stay, the continuation of the proceedings in the trial court disrupts the arbitration proceedings and can render them ineffective.” (*Federal Ins. Co. v. Superior Court* (1998) 60 Cal.App.4th 1370, 1374 1375.) Even “a single overlapping issue is sufficient to require imposition of a stay.” (*Heritage Provider Network, Inc. v. Superior Court* (2008) 158 Cal.App.4th 1146, 1153; see also *Coast Plaza Doctors Hospital v. Blue Cross of Calif.* (2000) 83 Cal.App.4th 677, 693 [staying all non arbitral claims other than for injunction]; *Federal Insurance Co.*, supra, 60 Cal.App.4th at p. 1374 [stay required where continuation of proceedings in the trial court “disrupts” arbitration proceedings and “can” render those proceedings ineffective].)

## **B. Application**

### **1. The Existence of An Arbitration Agreement**

“On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate that controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that: (a) The right to compel arbitration has been waived by the petitioner; or (b) Grounds exist for rescission of the agreement.” (Code Civ. Proc., § 1281.2.)

“The party seeking to compel arbitration bears the burden of proving by a preponderance of the evidence an agreement to arbitrate exists.” (*Nixon v. AmeriHome Mortgage Co., LLC* (2021) 67 Cal.App.5th 934, 946; see also *Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 164 [“The burden of persuasion is always on the moving party to prove the existence of an arbitration agreement with the opposing party by a preponderance of the evidence.”].)

“The party seeking arbitration can meet its initial burden by attaching to the petition a copy of the arbitration agreement purporting to bear the respondent's signature.” (*Bannister v. Marinidence Opco, LLC* (2021) 64 Cal.App.5th 541, 543–544; see also Cal. Rules of Court, rule 3.1330.) “Alternatively, the moving party can meet its burden by setting forth the agreement's

provisions in the motion.” (*Gamboa, supra*, 72 Cal.App.5<sup>th</sup> at p. 165.) “For purposes of a petition to compel arbitration, it is not necessary to follow the normal procedures of document authentication.” (*Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4<sup>th</sup> 215, 218; see also *People v. Skiles* (2011) 51 Cal.4<sup>th</sup> 1178, 1187 [“The means of authenticating a writing are not limited to those specified in the Evidence Code.” (citing Evid. Code, § 1410)].] and *ibid.* [“For example, a writing can be authenticated by circumstantial evidence and by its contents.”].)

Here, Defendant has produced a copy of the Retail Installment Sale Contract-Simple Finance Charge (With Arbitration Provision) (the “RISC”) that contains an arbitration provision on page five of six and purports to bear Plaintiff’s electronic signature. The seller of the vehicle is identified in the RISC as Mercedes Benz of Oxnard, the moving party herein. (Chan Decl., Exh. 1.) Defendant has thus met its initial burden. (*Gamboa, supra*, 72 Cal.App.5<sup>th</sup> at p. 165.)

“If the moving party meets its initial prima facie burden and the opposing party disputes the agreement, then in the second step, the opposing party bears the burden of producing evidence to challenge the authenticity of the agreement.” (*Gamboa, supra*, 72 Cal.App.5<sup>th</sup> at p. 165.) “The opposing party can do this in several ways. For example, the opposing party may testify under oath or declare under penalty of perjury that the party never saw or does not remember seeing the agreement, or that the party never signed or does not remember signing the agreement.” (*Ibid.*)

Here, although Plaintiff’s counsel argues that Plaintiff did not sign the contract (Opp. at 1:3 – 3:5), Plaintiff’s own declaration belies the argument. Plaintiff does not declare under penalty of perjury that she never saw the document or that she does not remember seeing or signing the document. Rather, she attaches to her declaration a copy of what appears to be the same document offered by Defendant. (Bittar Decl., Exh. A.) Initially, the buyer’s name on the RISC—“Barnar Joudat Bittar”—differs from Plaintiff’s name on the Complaint filed in this matter. Plaintiff does not address this discrepancy in her declaration. But she also does not state that she did *not* sign the agreement and, in fact, states the opposite: “In signing the agreement to lease the vehicle, I understood that I was agreeing to the use of a particular vehicle in exchange for payments over a period of time.” (*Id.*, ¶ 4.) Based on the foregoing admission, Plaintiff signed the agreement.

Additionally, while Plaintiff asserts that she has never agreed to arbitrate her “Song-Beverly Lemon Law warranty claims with *Mercedes-Benz USA, LLC*,” (*Id.*, ¶ 7 [emphasis added]), she does not similarly claim that she did not agree to arbitrate any claims with defendant Mercedes-Benz of Oxnard.

In light of Plaintiff’s admissions and her own production of an identical copy of the RISC, the Court finds that an agreement to arbitrate exists and that Plaintiff has consented to arbitrate all claims within the scope of the agreement.

## **2. Scope of the Agreement**

“The scope of arbitration is a matter of agreement between the parties[.]” (*Mendoza v. Trans Valley Transport* (2022) 75 Cal.App.5<sup>th</sup> 748, 763.) “The party opposing arbitration has the burden to show the arbitration provision cannot be interpreted to cover the claims in the complaint.” (*Id.* at p. 764.) Thus, Plaintiff has the burden to show that the provision does not cover her claim against Defendant.

The arbitration provision defines “You” as the Buyer and any Co-Buyer, and defines “we” and “us” as the Seller-Creditor, identified as Mercedes Benz of Oxnard. (Chan Decl., Exh. 1 at p. 1; Bittar Decl., Exh. A at p. 1.) At page five, the scope of the agreement is set forth as follows:

Any claim or dispute, whether in contract, tort, statute or otherwise (including the interpretation and scope of this Arbitration Provision, any allegation of waiver of rights under this Arbitration Provision, and the arbitrability of the claim or dispute), between you and us or our employees, agents, successors or assigns, which arises out of or relates to your credit application, purchase or condition of this Vehicle, this contract or any resulting transaction or relationship (including any such relationship with third parties who do not sign this contract) shall at your or our election, be resolved by neutral, binding arbitration and not by a court action. If federal law provides that a claim or dispute is not subject to binding arbitration, this Arbitration Provision shall not apply to such claim or dispute.

(Chan Decl., Exh. 1 at p. 5; Bittar Decl., Exh. A at p. 5.)

Plaintiff's claim against Defendant is for an alleged violation of Civil Code section 1796.5, which imposes a duty on entities engaged in the business of providing service or repair to consumer goods to perform those services in a good and workmanlike manner.

The Arbitration Provision broadly applies to any claim or dispute, whether in contract, tort, statute, or otherwise, between Plaintiff and Defendant arising out of or relating to the purchase or condition of the vehicle, the contract, or any resulting transaction or relationship. Plaintiff's own pleading confirms that the section 1796.5 claim concerns warranty-related repair work. Plaintiff alleges that Defendant performed “warranty repairs and service” on the vehicle on behalf of defendant Mercedes-Benz USA pursuant to Civil Code section 1793.2, and further alleges in the fourth cause of action that Defendant performed “warranty repairs falling under the Song-Beverly Act.” (Chan Decl., Exh. 2 [Complaint, ¶¶ 6-7, 15, 69-78].) The claim therefore directly relates to the condition of the vehicle and the parties' resulting vehicle-related repair relationship. The claim is predicated entirely on Defendant's alleged performance of warranty repairs to the Subject Vehicle and therefore falls squarely within the Arbitration Provision's broad coverage of disputes arising out of or relating to the condition of the vehicle and any resulting transaction or relationship. The statutory structure reinforces this conclusion. Section 1796.5 is housed within Chapter 2 of the Song-Beverly Act, titled “Standards for Warranty Work.” Plaintiff's claim concerns warranty-related repair work on the vehicle and therefore relates to the vehicle's condition and the parties' resulting vehicle-related relationship.

Accordingly, Plaintiff has failed to carry her burden of demonstrating that the Arbitration Provision cannot reasonably be interpreted to encompass the Civil Code section 1796.5 claim alleged against Defendant. The Court therefore finds that the claim falls within the scope of the Arbitration Provision.

### **3. The Alleged Delegation Clause**

Defendant argues for the first time in its reply that the Arbitration Provision contains a delegation clause, as a result of which the arbitrator must resolve questions about the

interpretation, scope, or arbitrability. (Reply at 3:22 – 4:8.) The Court declines to consider the argument because it was raised for the first time in the reply. (*Hernandez v. First Student, Inc.* (2019) 37 Cal.App.5th 270, 277.)

#### **4. Defense to Arbitration: Unconscionability**

“Once an agreement to arbitrate has been proved, the burden shifts to the party opposing arbitration to establish a defense to the enforcement of the agreement, including the burden of demonstrating that the exemption [from arbitration] applies.” (*Nixon v. AmeriHome Mortgage Co., LLC, supra*, 67 Cal.App.5th at p. 946 [internal quotation marks and citation omitted].)

“Unconscionability in a contract is one reason a court may decline enforcement.” (*Lange v. Monster Energy Co.* (2020) 46 Cal.App.5th 436, 445.) “If the court as a matter of law finds the contract or any clause of the contract to have been unconscionable at the time it was made the court may refuse to enforce the contract, or it may enforce the remainder of the contract without the unconscionable clause, or it may so limit the application of any unconscionable clause as to avoid any unconscionable result.” (Civ. Code, § 1670.5, subd. (a); see also *Ramirez v. Charter Communications, Inc.* (2024) 16 Cal.5th 478, 505 “[A]n unconscionability assessment focuses on circumstances known at the time the agreement was made.”].)

“The general principles of unconscionability are well established. A contract is unconscionable if one of the parties lacked a meaningful choice in deciding whether to agree and the contract contains terms that are unreasonably favorable to the other party.” (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 125.)

“Unconscionability consists of both procedural and substantive elements. The procedural element addresses the circumstances of contract negotiation and formation, focusing on oppression or surprise due to unequal bargaining power.” (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 246.) “Both procedural unconscionability and substantive unconscionability must be shown, but they need not be present in the same degree and are evaluated on a sliding scale.” (*Id.* at p. 247 [quoting in part *Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th at p. 83, 114 (internal quotation marks omitted)]). “In other words, the more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa.” (*Armendariz, supra*, at p. 114.)

“The party resisting arbitration bears the burden of proving unconscionability.” (*Pinnacle Museum Tower, supra*, at p. 247.)

##### **a. Procedural Unconscionability**

“Unconscionability analysis begins with an inquiry into whether the contract is one of adhesion.” (*Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 113.) “An adhesive contract is standardized, generally on a preprinted form, and offered by the party with superior bargaining power ‘on a take-it-or-leave-it basis.’” (*OTO, L.L.C. v. Kho, supra*, 8 Cal.5th at p. 126 [quoting *Baltazar v. Forever 21, Inc.* (2016) 62 Cal.4th 1237, 1245].)

Here, there is no dispute that the Arbitration Provision was part of a pre-printed form. Thus, it was a contract of adhesion. Even so, this indicates only a low degree of procedural

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unconscionability. (*Gatton v. T-Mobile USA, Inc.* (2007) 152 Cal.App.4th 571, 585 [“[A]bsent unusual circumstances, use of a contract of adhesion establishes a minimal degree of procedural unconscionability[.]”])

“Oppression occurs where a contract involves lack of negotiation and meaningful choice, surprise where the allegedly unconscionable provision is hidden within a prolix printed form.” (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 247.) “The circumstances relevant to establishing oppression include, but are not limited to (1) the amount of time the party is given to consider the proposed contract; (2) the amount and type of pressure exerted on the party to sign the proposed contract; (3) the length of the proposed contract and the length and complexity of the challenged provision; (4) the education and experience of the party; and (5) whether the party's review of the proposed contract was aided by an attorney.” (*Grand Prospect Partners, L.P. v. Ross Dress for Less, Inc.* (2015) 232 Cal.App.4th 1332, 1348, *as modified on denial of reh'g* (Feb. 9, 2015).)

The Court finds there is minimal evidence of oppression. Plaintiff asserts that the arbitration provision was not discussed with her. (Bittar Decl., ¶ 3.) Further, it is in a long, dense paragraph. (*Id.*, Exh. A. at p. 5.) But Plaintiff does not assert that she was not provided with time to review the provision, whether or not it was explained. She also does not describe any pressure to sign the contract. She does not describe her education or experience, especially whether she has prior experience with arbitration and arbitration agreements. And she does not state whether she asked for time to review the document with an attorney. Finally, the Arbitration Provision itself is clearly identifiable, both in the title of the document and in that it set apart in its own section of the RISC, with liberal use of bold type.

For these reasons, the Court finds a low level of procedural unconscionability.

**b. Substantive Unconscionability**

“A court should consider substantive unconscionability only after procedural unconscionability has been established. A ‘conclusion that a contract contains no element of procedural unconscionability is tantamount to saying that, no matter how one-sided the contract terms, a court will not disturb the contract because of its confidence that the contract was negotiated or chosen freely, that the party subject to a seemingly one-sided term is presumed to have obtained some advantage from conceding the term or that, if one party negotiated poorly, it is not the court's place to rectify these kinds of errors or asymmetries.’” (*Ramirez v. Charter Communications, Inc.* (2024) 16 Cal.5th 478, 494 [quoting *Gentry v. Superior Court* (2007) 42 Cal.4th 443, 470].)

“Substantive unconscionability pertains to the fairness of an agreement's actual terms and to assessments of whether they are overly harsh or one-sided.” (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC, supra*, 55 Cal.4th at p. 246.) “A contract term is not substantively unconscionable when it merely gives one side a greater benefit; rather, the term must be so one-sided as to shock the conscience.” (*Ibid.* [internal quotation marks and citation omitted].)

Although Plaintiff generally argues that the Arbitration Provision is substantively unconscionable (Opp. at 12:14 – 13:4), she points to no particular language or terms, which is insufficient to carry her burden on the issue.

In sum, the Court finds that she has not met her burden of establishing unconscionability.

**C. Disposition**

For the reasons stated herein, the motion is GRANTED. The matter is stayed as to the moving defendant only.

Counsel for the moving defendant is ordered to give notice of the Court's ruling.